

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

2026CUOE065260: DAWNYA LEANNE TAPPER vs SIMI HILLS GRUB, LLC

09/18/2026 in Department 42

Demurrer to Plaintiff's Thirteenth Cause of Action and Motion to Strike Punitive Damages

Motion 1: Demurrer to 13th COA

Motion 2: Motion to Strike averment and prayer for punitive damages

Tentative Ruling:

The Court sustains the demurrer with 30 days leave to amend. The Court grants the motion to strike with 30 days leave to amend.

Moving party to give notice.

Background:

This case involves a wage/hour dispute, as well as a claim for discrimination and wrongful termination. Plaintiff worked as a server at golf course. Following an incident in which a customer took a photograph of her, supervisors admonished her to wear appropriate clothing to work. Plaintiff purchased new clothes and sought reimbursement. Thereafter, a letter from Plaintiff's lawyer was sent to the employer, describing a cascading series of management decisions causing her to work longer shifts, without breaks, and without the benefit of certain available technology to make her sales/service job easier. Plaintiff contends that she was constructively discharged, and is seeking compensatory and exemplary damages.

Discussion:

1. Demurrer to the 13th COA for Constructive Discharge via *Tameny*

With regard to the thirteenth cause of action, plaintiff alleges as follows (in pertinent part):

“On or about July 29, 2025, a male customer photographed Plaintiff's backside without consent while she worked on the beverage cart. Plaintiff immediately reported this sexual harassment to David, the General Manager. The following day, on or about July 30, 2025, David sent Plaintiff home without pay, claiming her outfit was ‘too inappropriate.’ Following Plaintiff's report of sexual harassment, Defendant continued to impose different dress code standards upon Plaintiff compared to other employees. Defendant required Plaintiff to purchase additional work attire out-of-pocket. On or about January 23, 2025, Defendant received a letter of representation from Plaintiff's legal counsel, putting Defendant on notice of potential legal claims. Defendant instructed coworkers not to speak with Plaintiff and created a hostile work environment. On or about February 3, 2026, Plaintiff's ProCharge account for processing credit card sales was deactivated, forcing her to manually track sales and accept cash only, causing lost sales opportunities. On or about February 5, 2026, Plaintiff was forced to resign due to the hostile work environment ... Defendants cannot discriminate and/or retaliate against any employee on the basis of race, national origin, ancestry, physical disability,

mental disability, medical condition, sex, and/or engagement in protected activity. Based on the actions described above, Defendants constructively discharged Plaintiff for engaging in protected activity.” Complaint ¶¶ 9-21, 121-122.

While an at-will employee may ordinarily be terminated for no reason at all, or even for one that is considered to be arbitrary or irrational, an employer is not permitted to terminate an employee for a reason which contravenes a well-established fundamental public policy. *Tameny v. Atlantic Richfield Co.* (1980) 27 Cal.3d 167, 172. This is commonly referred to as a *Tameny* claim. To establish a *Tameny* claim, plaintiff must ultimately prove by a preponderance of the evidence each of the following essential elements: (1) the existence of an employer-employee relationship; (2) some adverse employment action taken against the employee; (3) adverse action that is substantially motivated by purpose violative of a firmly established public policy delineated in legislative enactments; and (4) actual damages proximately caused by the adverse action. (See *Williams v. Sacramento River Cats Baseball Club, LLC* (2019) 40 Cal.App.5th 280, 287-288; *Touchstone Television Productions v. Superior Court* (2012) 208 Cal.App.4th 676, 678-681; *Sistare-Meyer v. Young Men's Christian Ass'n of Metropolitan Los Angeles* (1997) 58 Cal.App.4th 10, 18.)

Here, plaintiff is alleging that the “adverse employment action” element is satisfied via constructive discharge. To plead the element of constructive discharge, plaintiff must allege ultimate facts demonstrating conditions in the workplace that were sufficiently extraordinary and egregious to overcome the normal motivation of a competent, diligent, and reasonable employee to remain on the job. The proper focus is on whether the resignation was coerced, meaning the adverse working conditions were so intolerable that any reasonable employee would resign rather than endure such conditions. It is not about a “stress-free” workplace but rather the existence of unreasonably harsh conditions in excess of those faced by co-workers. (*Turner v. Anheuser-Busch, Inc.* (1994) 7 Cal.4th 1238, 1244-1246; *Atalla v. Rite Aid Corp.* (2023) 89 Cal.App.5th 294, 319-320; *St. Myers v. Dignity Health* (2019) 44 Cal.App.5th 301, 314-316; *Vasquez v. Franklin Management Real Estate Fund, Inc.* (2013) 222 Cal.App.4th 819, 828-830; *Casenas v. Fujisawa USA, Inc.* (1997) 58 Cal.App.4th 101, 113-114.)

Plaintiff has alleged a pattern of inconveniences in her workplace following the employer’s receipt of the letter. That pattern includes: cold shoulder from co-workers, deactivation of ProCharge account, no mandatory breaks, required to “continuously restock the cart,” not tipping her out correctly, and no reimbursing plaintiff for clothes she purchased to do/keep the job. Plaintiff does not allege that she was forced to work longer shifts without a break, only that she was asked to do so. As for the clothing she was asked not to wear, Plaintiff does not allege that it was appropriate, only that others also wore inappropriate clothing. Plaintiff does not explain how it was intolerable to be asked to wear appropriate clothing. Plaintiff has not adequately alleged intolerable conditions, or any connection between the unpleasant conditions and an objective coercion to quit, but she may have leave to amend to do so. The demurrer is sustained.

2. Motion to Strike Pleading/Prayer re: Punitive Damages

Pursuant to CCP §§ 435 and 436, a party may move for an order striking from a pleading “any irrelevant, false or improper matter” or “any part of any pleading not drawn in conformity” with laws, rules or orders. This can include a prayer for punitive damages when the averments are

insufficient. (See *Turman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.)

Punitive damages may not be pleaded generally. (*Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority* (2022) 83 Cal.App.5th 1137, 1193.) To support the prayer, the pleader must set forth facts permitting a future finding by clear and convincing evidence that defendant's conduct was despicable and indicative of conscious disregard for the safety of others. Despicable conduct is conduct that is "so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people [and] having the character of outrage frequently associated with crime." (*Scott v. Phoenix Schools, Inc.* (2009) 175 Cal.App.4th 702, 716.) Stated another way, "punitive damages are appropriate if the defendant's acts are reprehensible ... [and which] could be described as evil, criminal, recklessly indifferent to the rights of the [plaintiff], or with a vexatious intention to injure." (*Food Pro International, Inc. v. Farmers Ins. Exchange* (2008) 169 Cal.App.4th 976, 994-995.) As with any substantive pleading, conclusions of law without factual support are insufficient to withstand a motion to strike. (*Curcini v. County of Alameda* (2008) 164 Cal.App.4th 629, 650; *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033; *Monge v. Superior Court* (1986) 176 Cal.App.3d 503, 510.)

Here, plaintiff alleges as part of the eighth cause of action for sexual harassment under FEHA (Govt. Code 12940(j)) that "defendants, by engaging in the aforementioned acts and/or in authorizing and/or ratifying such acts, engaged in willful, malicious, intentional, oppressive, and despicable conduct, and acted with willful and conscious disregard of the rights, welfare, and safety of Plaintiff, thereby justifying the award of punitive and exemplary damages in an amount to be determined at trial." This averment was carried over into the prayer for the thirteenth cause of action as well (which is moot given the ruling on demurrer).

It is not clear which "numerous instances of harassment based on their sex (described supra)" plaintiff is referring to. (Complaint ¶ 78.) Even if clarity were provided via an amendment, the prayer is still not adequately stated because plaintiff is seeking exemplary damages from an entity. To do so, plaintiff must include facts showing that an officer, director or managing agent: (1) had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others; (2) authorized the bad act; (3) ratified the bad act; or (4) was personally (ie, through controlling members) guilty of oppression or malice. (Civil Code §3294(b); *Weeks v. Baker & McKenzie* (1998) 63 Cal.App.4th 1128, 1148-1149.) "Ratification may be proved by circumstantial as well as direct evidence. Anything which convincingly shows the intention of the principal to adopt or approve the act in question is sufficient." (*StreetScenes v. ITC Entertainment Group, Inc.* (2002) 103 Cal.App.4th 233, 242; *Herrick v. Quality Hotels, Inns & Resorts, Inc.* (1993) 19 Cal.App.4th 1608, 1617.) This heightened requirement applies anytime punitive damages are sought against a corporation. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 167-168.) Plaintiff's inference that her supervisor "might be" in the control group is insufficient.

The Motion to strike is GRANTED. Plaintiff may use the same 30 days to amend this prayer, or may elect to wait for further discovery and seek leave to amend at that time.